

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is **DROPPED FROM CALENDAR** as moot.

12. 9:00 AM CASE NUMBER: C25-03200
CASE NAME: DEMANUEL GROSSE, SR. VS. THE PORTIA BELL HUME CENTER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: THE PORTIA BELL HUME CENTER
TENTATIVE RULING:

Defendant THE PORTIA BELL HUME CENTER filed a Demurrer on February 26, 2026 to the Complaint filed October 30, 2025 by plaintiff. The Demurrer was set for hearing on July 27, 2026. A First Amended Complaint was filed on May 18, 2026. When a plaintiff files an amended complaint in response to a demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 12.11. Defendant’s Demurrer is ordered OFF CALENDAR as moot.

13. 9:00 AM CASE NUMBER: C26-00053
CASE NAME: JONATHON HEPBURN VS. CONTRA COSTA FARMS, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CONTRA COSTA FARMS, LLC
TENTATIVE RULING:

Introduction

Defendant Contra Costa Farms, LLC (“Defendants”) filed a Motion to Compel Arbitration seeking an order compelling plaintiff Jonathan Hepburn (“Plaintiff”) to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Plaintiff’s employment with Defendant from approximately September 2023 through July 2024.

The Motion relates to Plaintiff’s Complaint for (1) Race Discrimination in Violation of the Fair Employment and Housing Act (“FEHA”); (2) Retaliation in Violation of the FEHA; (3) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; 4) Whistleblower Retaliation in Violation of Cal. Lab. Code § 1102.5; and (5) Wrongful Termination in Violation of Public Policy.

For the reasons articulated below, the Motion to Compel Arbitration is **DENIED**.

Relevant Facts

Plaintiff was employed with Defendant from September 1, 2023, until his termination on July 3, 2024. (Hepburn Decl. ¶12.)

Plaintiff generally states that he was employed by the entity Contra Costa Farms, LLC, not “CoCo Farms LLC” or “CCF.” (Hepburn Decl. ¶13.) The Court notes that the Severance Agreement defines Contra Costa Farms, LLC as “Employer” or “CCF” in the second line of the Severance and Release Agreement.

(Hepburn Decl. Ex. 4, p. 1.)

Plaintiff described a hurried onboarding process of signing documents through an employee management application named Wurk that took place on August 31, 2023. (Hepburn Decl. ¶ 9.) Plaintiff states that he had no legal training, no background in contract law, and no prior experience evaluating the terms or legal implications of binding arbitration agreements. (Hepburn Decl. ¶ 8.) Plaintiff understood that Defendant would not allow him to start his position and start earning wages without signing all the documents. Defendant did not explain the Arbitration Agreement to him, advise him that the Arbitration Agreement was optional, allow him to seek an attorney nor was he provided with a copy of the JAMS Employment Arbitration Rules and Procedures. (Hepburn Decl. ¶¶ 12-15.) Plaintiff states that he completed the documents that were part of the mandatory onboarding process but does not remember signing an Arbitration Agreement. (Hepburn Decl. ¶¶ 10,16.)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Duffens v. Valenti* (2008) 161 Cal.App.4th 434, 443.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.’” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, “[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings.” (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) “A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute.” (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, “a heavy presumption weighs the scales in favor of arbitrability....” (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Analysis

Objections

The Court has considered and **OVERRULES** Objection Nos. 1 through 9 to the Declaration of Declaration of Kelly Marti as set forth in the Objections filed July 14, 2026.

Defendant’s Initial Burden

Parties moving to compel arbitration “may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047,

1060.)

Defendant provides an electronically signed copy of the Arbitration Agreement. (Marti Decl., Ex. 2.) As such, Defendant has met its initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Absence of Defendant's Signature

It is undisputed Defendant did not sign the agreement. Defendant nevertheless contends its assent should be presumed because it drafted the agreement, presented the agreement to Plaintiff through onboarding, and moves to enforce the agreement. (Reply pp. 5-6.) Defendant is correct that the absence of the employer's signature is not always dispositive. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 397–398.) But here, the plain language of the agreement contemplated Defendant's signature to form an agreement to arbitrate, and none was ever provided.

The agreement's terms clearly state Defendant's signature is necessary to form an agreement to arbitrate: " In consideration for signing this Agreement, and the performance of the terms herein, you and CCF (collectively, the "Parties") hereby agree." (Marti Decl. Ex. 2. p. 1, Introductory section.) The signature requirement is repeated again under the Arbitrator heading: " By signing this Agreement, the Parties agree any arbitration shall be conducted before one neutral arbitrator selected by the Parties under the then applicable JAMS Employment Arbitration Rules & Procedures (the "JAMS Rules") then in effect." (Marti Decl. Ex. 2. p. 1, section 2.) Since Defendant did not sign the agreement per its unambiguous terms, the parties never formed an agreement to arbitrate.

The court in *Marcus & Millichap Real Estate Investment Brokerage Co. v. Hock Investment Co.* (1998) 68 Cal.App.4th 83, 80 similarly held signatures are required to form an agreement to arbitrate when the language of the agreement imposes that requirement. In *Marcus*, the agreement stated in part: "By initializing in the space below you are agreeing to have any dispute arising out of the matters included in the "Arbitration of Disputes" provision decided by neutral arbitration" (*Id.* at p. 86.) Although the buyers initialed the provision, the sellers did not. (*Id.*) The *Marcus* court thus concluded that "the contract contemplated that the arbitration of disputes provision would be effective only if both buyers and sellers assented to that provision by initialing it [and] [s]ince the sellers did not initial that provision, it did not become effective." (*Id.* at p. 92.)

The cases relied on by Defendant in their reply papers, in which courts have enforced arbitration agreements that were not countersigned by the employer, are easily distinguishable. (See *Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 185; *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390.) Critically, neither case involved arbitration agreements indicating a signature from both parties is necessary to form an agreement. For example, in *Serafin, supra*, 235 Cal.App.4th at p. 171, the agreement stated: "[I]t is the policy of [the employer] that the disputed matter shall be submitted to binding arbitration under the Rules of the American Arbitration Association applicable to employment disputes. All employees will be required to sign an acknowledgement stating that they understand this policy and will comply with it." Because the agreement did not require the employer's signature,

the *Serafin* court looked to the presence or absence of evidence of the employer's intent to be bound by the agreement. It then concluded the employer's intent to be bound by the agreement could be inferred because the agreement was drafted by the employer, the agreement was printed on the employer's letterhead, and the employer filed a motion to stay the litigation and compel arbitration. (*Id.* at pp. 176-177.) The Court cannot, as Defendant urges us to do, presume Defendant assented to the agreement when the terms of the agreement specifically call for signatures from both parties and Defendant failed to sign it.

Conclusion

For the reasons analyzed above, the Motion to Compel Arbitration is **DENIED**.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO REQUESTS FOR**
ADMISSION, SET ONE
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Defendant NFP Corporate Services (CA), Inc. (“Defendant”) filed a motion to compel responses to requests for admission on December 30, 2025 (the “Motion to Compel”). By the Motion to Compel, Defendant seeks an order compelling plaintiff Sandra Hernandez (“Plaintiff”) to make further verified, objection free responses to Requests for Admission, Set One. The Motion to Compel was set for hearing on July 27, 2026.

Background

Defendant served requests for admission (“RFA”) on August 25, 2025 with responses due on September 24, 2025. See Declaration of Annalisa Zulueta filed December 30, 2025 (“Zulueta Decl.”), ¶¶5-6. Plaintiff responded on September 29, 2025. Zulueta Decl., ¶7 and **Exhibit 8** thereto (the “RFA Response”). The RFA Response primarily contained repeated, substantially similar objections, except for two express denials. *Id.* Defendant’s declaration contends the RFA Response was not verified, which is conceded by Plaintiff’s opposition. See Zulueta Decl., ¶17; see also Plaintiff’s Opposition to Motion to Compel filed July 17, 2026 (the “Opposition”), p. 4.

Defendant describes meet and confer efforts between November 2025 and December 2025 which were unsuccessful. Zulueta Decl., ¶¶12-15 and **Exhibits 9, 10, and 11** thereto.

Defendant subsequently filed the Motion to Compel on December 30, 2025. The Proof of Service filed December 30, 2025 reflects service of the Motion to Compel.

Analysis